



CHAPTER xvii.

An Act to enable the Ipswich Dock Commissioners to
construct certain works in connection with their docks
to make a tramway and tramroad to raise additional
money and for other purposes. [24th June 1904.]

A.D. 1904.

WHEREAS by the Ipswich Dock Act 1852 (hereinafter referred to as "the Act of 1852") the Acts relating to the port of Ipswich were consolidated and amended and the Ipswich Dock Commissioners (in this Act called "the Commissioners") were constituted and incorporated and the dock and works constructed under the Acts therein recited were vested in the Commissioners and they were empowered to make the works by that Act authorised and otherwise to carry the provisions of that Act into execution :

15 & 16 Vict.
c. cxvi.

And whereas by the Ipswich Dock Act 1877 (hereinafter called "the Act of 1877") the Commissioners were authorised to construct certain works in connection with the dock including a new entrance lock and were authorised to make and maintain certain tramways for the purposes of and in connection with the dock undertaking of the Commissioners :

40 & 41 Vict.
c. ccxvi.

And whereas by the Ipswich Dock Act 1898 (hereinafter called "the Act of 1898") the Commissioners were authorised to construct works in connection with their dock and were authorised to construct tramways in connection with the tramways authorised by the Act of 1877 :

61 & 62 Vict.
c. cxliii.

And whereas under the Acts referred to and recited in the Act of 1852 a navigable dock or basin with entrance lock and embankments was made upon part of the River Orwell and a new cut or channel was constructed with roadways on each side thereof and the waters of the River Gipping and the flow of the tide of the

A.D. 1904. — River Orwell were turned and diverted into and through the said new cut and quay walls were constructed by the Commissioners on the north-east and part of the south-west sides of such new cut and it is expedient that power should be conferred upon the Commissioners as in this Act contained for the widening of such roadways and quays and deepening of such quay walls along the said new cut :

And whereas it is expedient that in connection with such quays and wharves and their existing tramways the Commissioners should be empowered to construct the additional tramway and the tramroad in this Act described :

And whereas it is expedient that powers for borrowing further moneys should be conferred upon the Commissioners :

And whereas plans and sections showing the lines and levels of the works by this Act authorised and the lands which may be acquired under the powers of this Act and a book of reference thereto containing the names of the owners or reputed owners lessees or reputed lessees and of the occupiers of such lands have been deposited with the clerk of the peace for the county of Suffolk and are hereinafter respectively referred to as the deposited plans sections and book of reference :

And whereas it is expedient that other provisions should be made as in this Act set forth :

And whereas the objects of this Act cannot be attained without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title.

1. This Act may be cited as the Ipswich Dock Act 1904.

Incorporation of Acts.

2. The following Acts and parts of Acts are except where expressly varied by or inconsistent with this Act incorporated with and form part of this Act (that is to say) :—

The Lands Clauses Acts ;

The clauses of the Commissioners Clauses Act 1847 with respect to the mortgages to be executed by the Commissioners (except section 84) ;

The Harbours Docks and Piers Clauses Act 1847 (except the provisions thereof with respect to keeping a tide and

weather gauge and section 25 " Rates not to be taken until A.D. 1904. the works shall be completed "); and

Sections 13 18 and 19 of the Railways Clauses Act 1863 :

Provided that this Act shall not be taken to require the Commissioners to provide any lifeboat unless and until the Board of Trade in writing so require.

3. In this Act unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partly incorporated herewith have the same respective meanings. Interpretation.

4. Subject to the provisions of this Act the Commissioners may make and maintain the works described in this section in the lines and in accordance with the levels shown on the deposited plans and sections relating thereto and may appropriate to those purposes any lands for the time being belonging to them and may enter upon take and use such of the other lands shown on the deposited plans and described in the deposited book of reference as may be required for those purposes. Power to make works.

The works hereinbefore referred to and authorised by this Act are—

Work No. 1 A widening of the existing quay and the road known as the East Road on the north-eastern side of the new cut commencing at the north-western end of the East Road opposite Foundry Lane and terminating at a point on the foreshore of the new cut opposite the gate across the East Road near the East Road landing stage :

Work No. 2 A wharf or embankment commencing at the point hereinbefore described as the termination of Work No. 1 and terminating at the south-western corner of the new entrance lock to the dock of the Commissioners :

Work No. 3 A tramroad commencing at the gate aforesaid and terminating at the western end of the swing bridge across the new entrance lock aforesaid :

And in connection with the works before described the Commissioners may make embankments cuts gates sluices piers jetties bridges staiths quays wharves roads approaches and other works and conveniences.

5. The Commissioners may make and maintain in the line and situation and according to the levels shown upon the deposited plans and sections and in all respects in accordance with those Power to make tramway.

A.D. 1904. — plans and sections a tramway (single line) (2 furlongs 0·10 chain in length) alongside the existing single line of tramway in the East Road commencing at the point hereinbefore described as the commencement of Work No. 1 and terminating at the aforesaid gate across the East Road.

Works to form part of undertaking of Commissioners.

6. The quay and works by this Act authorised shall for all purposes including the levying and recovery of dues rates and charges form part of the undertaking of the Commissioners and subject to the provisions of this Act the Commissioners shall have and may exercise and enjoy in over upon and in relation thereto the same rights powers and privileges as if the same had immediately before the passing of this Act formed part of the undertaking of the Commissioners.

Provisions as to tramway and tramroad.

7. For the purpose of charges the tramway and tramroad by this Act authorised shall be deemed to form part of the tramways of the Commissioners subject to the provisions of section 25 of the Act of 1877 and the tramway and tramroad shall be made on the gauge of four feet eight and a half inches and may be worked by steam power Provided that nothing in this Act shall authorise any person other than the Commissioners to use steam power on the tramway or tramroad without the licence of the Commissioners.

Limits of deviation.

8. In constructing the works (other than the tramway) by this Act authorised the Commissioners may deviate laterally from the lines thereof as shown on the deposited plans to any extent not exceeding the limits of deviation shown on those plans and they may deviate vertically from the levels of the said works as shown on the deposited sections to any extent not exceeding five feet Provided that no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Board of Trade.

Landing stages for passengers.

9. The Commissioners may construct and maintain in the new cut jetties or landing stages with all necessary approaches and conveniences for the embarking and disembarking of passengers Provided that such jetties or landing stages shall only be constructed on those portions of the said new cut of which the banks and walls are maintained and repaired by the Commissioners.

Agreements with Great Eastern Railway Company.

10. It shall be lawful for the Commissioners on the one hand and the Great Eastern Railway Company on the other hand to enter into and carry into effect agreements with respect to the construction maintenance and management by the Great Eastern

Railway Company of the tramway and tramroad authorised by this Act and the use and working thereof and the conveyance of traffic thereon and the fixing collecting and apportionment of the tolls rates charges receipts and revenues levied taken or arising in respect of such traffic.

A.D. 1904.
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11. With the licence in writing of the Commissioners under their common seal and subject to any conditions expressed in such licence it shall be lawful for the Great Eastern Railway Company or any other company or person working or using the tramway and tramroad authorised by this Act or either of them to use locomotive engines thereon. Provided that no such engine shall be so used in any public street under the control of the corporation of Ipswich except with the licence in writing of that body under their common seal and subject to any conditions expressed in such licence and any licence of the Commissioners or the said corporation for the purpose of this section may be at any time revoked by two months' notice under their respective common seals served upon the secretary of the said company or upon any other person to whom such licence may have been given.

Locomotive
power on
tramway
and tram-
road.

12. In addition to the sum owing by the Commissioners at the commencement of this Act they may borrow for the purposes of this Act and for other the purposes of the Commissioners any sum or sums of money not exceeding in the whole sixty thousand pounds and subject to the provisions of this Act they may mortgage the rates and duties leviable by them under the Act of 1877 to secure the repayment of the money so borrowed with interest.

Power to
borrow fur-
ther moneys.

13. The Commissioners shall at and after five years from the borrowing of any money under this Act make provision to the satisfaction of the Board of Trade out of the revenue arising under the Act of 1877 for paying off all money so borrowed within sixty years after the same is borrowed either by instalments or by means of a sinking fund appropriated and invested and with the accumulation thereof (if any) from time to time applied in redemption of such mortgages.

Sinking fund
to be pro-
vided.

14. The clerk to the Commissioners shall within twenty-one days after the expiration of each year during which any sum is required to be set apart for a sinking fund or any instalment is required to be paid under this Act transmit to the Board of Trade a return in such form as may be prescribed by that Board and verified by statutory declaration if so required by them showing

Annual
return to
Board of
Trade with
respect to
sinking fund.

A.D. 1904. the amount which has been paid as an instalment or invested for the purpose of such sinking fund during the year preceding the making of such return and the description of the securities upon which the same has been invested and also showing the purposes to which any portion of the moneys invested for the sinking fund and the interest thereon have been applied during the same period and the total amount remaining invested at the end of the year and in the event of any wilful default in making such return the clerk to the Commissioners shall be liable to a penalty of not exceeding twenty pounds which shall be paid to the Board of Trade and shall be recoverable by that Board in a summary manner. If it appear to the Board of Trade by such return or otherwise that the Commissioners have failed to pay any instalment or to set apart the sum required by this Act for the sinking fund or have applied any portion of the moneys set apart for that sinking fund or any interest thereon to any purposes other than those authorised by this Act the Board of Trade may by order direct that a sum not exceeding double the amount in respect of which such default shall have been made shall be set apart and invested as part of the sinking fund and such order shall be enforceable by writ of mandamus to be obtained by the Board of Trade out of the High Court.

The provisions of this section shall extend and apply *mutatis mutandis* to appropriations and to annual repayments.

Priority of
existing
mortgages.

15. Every mortgage granted by the Commissioners before the commencement of this Act and subsisting at the commencement thereof shall as against the securities comprised therein respectively have priority over any mortgages granted by the Commissioners under the powers of this Act.

Power to
reborrow.

16. If the Commissioners pay off any money borrowed on mortgage under this Act otherwise than by means of a sinking fund they may reborrow the same and so from time to time as often as the case occurs.

Appointment
of receiver.

17. Section 20 of the Act of 1898 (Appointment of receiver) is hereby repealed but without prejudice to anything done thereunder and the mortgagees of the Commissioners may enforce payment of the arrears of interest or principal or of principal and interest due on their mortgages by the appointment of a receiver and the amount of principal owing to mortgagees which shall entitle them to apply for a receiver shall be not less than ten thousand pounds.

18. All moneys borrowed by the Commissioners under the powers of this Act shall be applied— A.D. 1904.

First In paying the costs and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act; Application
of moneys
borrowed.

Second In the execution of the works by this Act authorised; and

Third In carrying into execution the powers of the Act of 1898 and to the general purposes of the undertaking of the Commissioners being in all cases purposes for which capital is properly applicable.

19. All money to be received or collected by the Commissioners under the Acts of 1877 and 1898 from rates or duties and all other revenue of the Commissioners arising under those Acts or this Act shall subject to the provisions of this Act be applied in the manner and order following and not otherwise (namely):— Application
of revenue.

(1) In providing for the purposes set forth in subsections (1) and (2) of section 22 (Application of revenue) of the Act of 1898 including the cost of maintaining the works of the Commissioners under that Act and under this Act and of dredging and other like improvements :

(2) In paying the interest on moneys borrowed by the Commissioners under the powers of this Act and in providing the requisite instalments or appropriations for paying off the principal thereof :

(3) The residue or surplus of all such rates and other revenue as aforesaid which shall not be required for any of the preceding purposes shall be applied in or towards the repayment of the principal moneys borrowed by the Commissioners under the Act of 1852 or the Acts therein recited or any of them.

20. The Commissioners shall not under the powers of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Commissioners shall not

Works below
high-water
mark not to be
commenced
without
consent of
Board of
Trade.

